

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-16

BALTIC AUTO SHIPPING, INC.

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV and
EMPIRE UNITED LINES CO., INC.**

**RESPONDENTS' OPPOSITION TO COMPLAINANT'S
MOTION FOR CONFIDENTIAL TREATMENT**

Respondents respectfully submit this opposition to Complainant's Motion for Confidential Treatment. **[Doc. No. 117]**.

First, the Commission should be aware that once again, Mr. Nussbaum failed to confer with the undersigned prior to filing the instant motion seeking relief. This represents the sixth such failure to adhere to Rule 71 in the past few months alone. For the sake of brevity, Respondents refer the Commission to their previous filings which discuss Mr. Nussbaum's repeated pattern of flagrantly violating Rule 71 in more detail. **[Doc. No. 114 at p. 10]**.

Second, Mr. Nussbaum has failed to show the requisite good cause to justify confidential treatment under Rule 208 and 46 C.F.R. § 502.5(b) since the portions of the status report and the appendix for which confidential treatment are sought discuss issues which Mr. Nussbaum has submitted to the Court in the District of New Jersey via an October 4, 2017 letter, which even now is available publicly on the docket in that Court.¹ In any event, there was never any confidentiality agreement with respect to the settlement in the District of New Jersey case, and thus, the entire premise behind the request for confidentiality is unsupported.

¹ See Document No. 83-1 in the case captioned as *Empire United Lines Co., Inc. et al. v. Baltic Auto Shipping, Inc., et al.*, U.S.D.C. – D.N.J., 15 Civ. 355 (CCC) (MF).

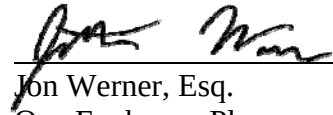
Moreover, the status report itself is based on a false premise. The District of New Jersey case remains closed notwithstanding Mr. Nussbaum's untimely and unjustified efforts to re-open it, and Respondents maintain their position, and abide by the Commission's April 21, 2017 decision that the settlement of the District of New Jersey case did not include any waiver of Respondents' statutory rights to seek recovery of reasonable attorney fees as prevailing parties.

For the foregoing reasons, Respondents respectfully submit that Complainant's Motion for Confidential Treatment should be denied.

Dated this 19th day of October 2017.

LYONS & FLOOD, LLP

By:



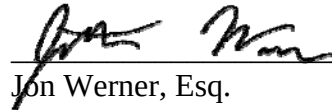
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CERTIFICATE OF SERVICE

I hereby certify that I have this day served RESPONDENTS' OPPOSITION TO COMPLAINANT'S MOTION FOR CONFIDENTIAL TREATMENT upon all parties of record by first class mail and email at the addresses below, and that the original and five copies are being filed with the Secretary of the Federal Maritime Commission:

Marcus A. Nussbaum, Esq.
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Dated this 19th day of October 2017.



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